

Court No. - 19

Case :- WRIT - C No. - 1753 of 2022

Petitioner :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko. Thru.Managing Director And Another

Respondent :- Shri Shoaib Ahmed Khan And Another

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- Sanjay Singh

Hon'ble Pankaj Bhatia,J.

It is informed that counsel for the petitioner is ill.

List on 01.04.2022, as fresh.

Order Date :- 29.3.2022

nishant

Court No. - 19

Case :- WRIT - C No. - 1753 of 2022

Petitioner :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko. Thru.Managing Director And Another

Respondent :- Shri Shoaib Ahmed Khan And Another

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- Sanjay Singh

Hon'ble Pankaj Bhatia,J.

By means of the present petition, the petitioners have challenged the order dated 19.08.2021 passed by the Consumer Grievance Redressal Forum, Lucknow.

The facts, in brief, are that in the year 2011 a bill of dues of electricity amounting to Rs.25,223/- was said to have been issued against respondent no.1, however, no recovery was effected against the said bill and once again in the month of September, 2020, a bill of Rs.3,60,340.27/- was issued against respondent no.1, who challenged the same before the forum. The forum by means of its impugned order directed the petitioners to issue a modified bill based upon the average meter reading according to the tariffs that were applicable from time to time with a further direction that on the same amount, no surcharge would be levied. It was also directed that any amounts paid by the consumer from time to time shall be adjusted.

A question was raised as to how a bill that was issued in the year 2011 could be recovered in view of bar of limitation, learned counsel for the petitioner places reliance on Section 56(2) read with Section 6.15 of the Electricity Supply Code to argue that the amounts could have been recovered. He also places reliance on the judgment of the Hon'ble Supreme Court in the case of ***Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited and Anr. v. Rahamatullah Khan alias Rahamujlla - (2020) 4 SCC 650.***

In the said judgment, the Hon'ble Supreme Court had considered the scope of Section 56(2) and while deciding the issue of starting point of limitation, it held in Para - 9.2 that the starting point of limitation in the case of discovery of a mistake, which could not be discovered with exercise of reasonable diligence, would be the date when the said mistake was discovered. In that context, the Hon'ble Supreme Court held that the starting point of limitation would be the date when the mistake was discovered.

The facts in the present case only state that the bill, which was issued in the year 2011, could not be recovered on account of complicity of certain employees of the petitioners corporation, as such, adding surcharge and interest and other charges, the bill was issued in the year 2020.

Prima-facie, the question of limitation needs to be considered by this Court.

Issue notice to respondent no.1.

Steps be taken to serve respondent no.1 within two weeks.

Respondent no.1 shall file counter affidavit within two weeks thereafter.

Rejoinder affidavit to the counter affidavit of respondent no.1 shall also be filed within two weeks.

List this case on **23.05.2022**.

No case for interim order is made out. It is, however, provided that any action done by the petitioners in compliance of the impugned order shall be subject to the final outcome of the writ petition.

Order Date :- 1.4.2022
nishant

Court No. - 20

Case :- WRIT - C No. - 1753 of 2022

Petitioner :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko. Thru.Managing Director And Another

Respondent :- Shri Shoaib Ahmed Khan And Another

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- Ved Prakash Sharma,Lav Upadhyay,Sanjay Singh

Hon'ble Manish Kumar,J.

Learned counsel for the petitioner prays for and is granted two weeks' time for filing rejoinder affidavit.

List this case in the week commencing 08.08.2022.

Order Date :- 7.7.2022

Ashish

Court No. - 7

Case :- WRIT - C No. - 1753 of 2022

Petitioner :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko. Thru.Managing Director And Another

Respondent :- Shri Shoaib Ahmed Khan And Another

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- Ved Prakash Sharma,Lav Upadhyay,Sanjay Singh

Hon'ble Abdul Moin,J.

Learned counsel for the petitioner submits that the matter is ripe for final hearing.

Accordingly, list this case within four weeks for final hearing.

By the next date of listing, learned counsel for the parties shall prepare a synopsis of the case.

Order Date :- 11.1.2023

J.K. Dinkar

Court No. - 19

Case :- WRIT - C No. - 1753 of 2022

Petitioner :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko. Thru.Managing Director And Another

Respondent :- Shri Shoaib Ahmed Khan And Another

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- Ved Prakash Sharma,Lav Upadhyay,Sanjay Singh

Hon'ble Subhash Vidyarthi,J.

1. Sri Amarjeet Singh Rakhra, the learned counsel for the petitioners is reported to be on sanctioned leave.
2. List in the week commencing 08.07.2024.

[Subhash Vidyarthi,J.]

Order Date :- 30.5.2024

kkv/

Court No. - 7

Case :- WRIT - C No. - 1753 of 2022

Petitioner :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko.
Thru.Managing Director And Another

Respondent :- Shri Shoaib Ahmed Khan And Another

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- Ved Prakash Sharma,Lav
Upadhyay,Sanjay Singh

Hon'ble Alok Mathur,J.

1. List has been revised.
2. Sri Amarjeet Singh Rakhra, learned counsel for the petitioners is present. No one has appeared on behalf of respondents.
3. It is submitted by learned counsel for the petitioners that counter and rejoinder affidavits have been exchanged and the matter is ripe for hearing.
4. It is next submitted by learned counsel for the petitioners that this has duly considered the arguments of the petitioners by a detailed order dated 01.04.2022 and issued noticed to the respondents. It is submitted that petitioner has placed reliance on the order of the Hon'ble Supreme Court in the case of **Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited and Another Vs. Rahamatullah Khan @ Rahamujlla, (2020) 4 SCC 650**, according to which starting point of limitation would be the discovery of a mistake and placing reliance on the said judgment recovery can be initiated against the respondents.
5. In the light of above, list this case for further hearing on 16.10.2024.
6. Till the next date of listing, operation and effect of impugned order dated 19.08.2021, passed by the Consumer Grievance Redressal Forum, Lucknow shall remain stayed.

Order Date :- 20.9.2024

A. Verma

(Alok Mathur, J.)



**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 1753 of 2022

Madhyanchal Vidyut Vitran Nigam Ltd. Lko.
Thru.Managing Director And Another

.....Petitioner(s)

Versus

Shri Shoaib Ahmed Khan And Another

.....Respondent(s)

Counsel for Petitioner(s)	: Amarjeet Singh Rakhra
Counsel for Respondent(s)	: Ved Prakash Sharma, Lav Upadhyay, Sanjay Singh

Court No. - 5

HON'BLE ALOK MATHUR, J.

1. As prayed, list after six weeks.
2. Interim order granted earlier to continue till the next date of listing.

(Alok Mathur,J.)

March 31, 2026
A. Verma